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August 18, 2026

Timothy Jordan, Chairperson
Haverhill City Council
Haverhill City Hall
4 Summer Street
Haverhill MA, 01830

AUG 18 PM 3:35
HAVCITYCLERK

Re: Owner Occupancy – Mariam’s Cottage, 421 East Broadway

Dear Chair Jordan and members of the Council,

As you are aware, my office represents Maryam Salehi and her children Nikka Yamin, Sherwin Yamin, and Arash Yamin (“Maryam” and the “Yamins”) regarding their pending application for a special permit to operate “Mariam’s Cottage” bed and breakfast at 421 East Broadway (the “Property”).

In light of the City Solicitor’s communication to the City Council on July 27, 2026, regarding application of the owner occupancy requirement for a “Bed and Breakfast Establishment,” the Yamins withdraw any request they have made to the Council to allow residence at their directly abutting 423 East Broadway property to satisfy said requirement. The Yamins will proceed with their application pending with the City Council with the understanding that they must comply with the Zoning Ordinance’s owner occupancy requirement in order to operate the bed and breakfast, unless and until they have obtained a validly issued variance from from the Haverhill Board of Appeals.

The Yamins request that the Council act on their special permit petition and vote on the request with all relevant conditions previously submitted, as presently scheduled on the agenda of

the Council's meeting on August 25, 2026. Based on my communication with the City Solicitor it is my understanding that it is entirely appropriate for the Council to render its decision on the pending special permit request and leave any consideration of a potential variance to the Board of Appeals at a later date.

Thank you for your time and continued attention to this matter.

Very truly yours,

JOHNSON & BORENSTEIN, LLC

/s/ Donald F. Borenstein

Donald F. Borenstein

DFB~klb

Cc: Client